POLICY DOCUMENT

Records Management, Retention & Access Policy

Accurate corporate records, protected student information, and defensible preservation

Policy ID: NSF-RM-01
Status: Proposed for Board Approval
Approval / Effective Date: To be established
Policy Owner: Board of Directors / designated administrator

1. Purpose and authority

NSF shall maintain authentic and usable records needed to govern, operate, account for funds, safeguard students, document educational programs, respond to lawful requests, and protect legal rights. This Policy supplements applicable Texas and federal law, the Certificate, Bylaws, and other approved policies.

The Secretary is the custodian of corporate records and official decisions. The Treasurer is custodian of financial records. Program leads are responsible for promptly placing program records into approved Foundation-controlled repositories. Specific authority may be delegated, but custody must not depend on a single individual's personal account.

2. Record classification

Class	Examples	Access default
Corporate governance	Certificate, bylaws, Board/committee rosters, notices, agendas, minutes, resolutions, consents, policies	Official repository; inspection as law requires
Financial and fundraising	Ledgers, statements, receipts, approvals, grants, donor restrictions, sponsor agreements	Restricted to authorized personnel; applicable inspection/disclosure
Youth and program	Enrollment, emergency contacts, evaluations, attendance, event safety plans, mentorship logs	Need-to-know; special safeguards
Safeguarding/complaints	Reports, witness statements, screening results, incident documentation	Highly restricted; preservation and legal process
Digital and media	Web versions, files, access logs, group communications, source media and consents	Access based on role; retain original evidence
Tax/public reports	Determination records, exemption application, returns/notices and annual reports	Disclose as legally required; public copies may be posted

3. Official repositories and record integrity

Corporate minutes shall state actual dates, participants, motions, votes, conflicts, and actions rather than a preferred interpretation. Changes to earlier minutes or records shall be made as dated, attributable corrections or supplements; the original version shall be preserved.

Email, WhatsApp or other messaging services, shared drives, Notion, GitHub, online registration systems, and personal devices may contain Foundation records. The person using a system for NSF business shall preserve relevant material and, when feasible and lawful, transfer an accessible business copy to the Foundation's approved repository. This does not require surrender of unrelated personal accounts or passwords.

Essential organizational accounts and records shall have documented ownership and at least two authorized adult recovery contacts where feasible. Use least-privilege permissions, appropriate multifactor authentication, backups, and an access-removal/handover process when roles change.

4. Retention schedule and review

Retention periods below are proposed NSF baselines for Board and counsel review—not a statement that each category has an identical statutory period. A longer legal, grant, donor, insurance, contract, or preservation duty controls. Records should not be retained indefinitely without purpose when they contain sensitive personal information.

Record type	Proposed retention / disposition rule
Certificate, governing amendments, approved bylaws, IRS determination and tax exemption application	Permanent organizational archive
Board/committee minutes, written consents, formal resolutions, director/officer registers	Permanent organizational archive
Filed tax returns and significant supporting financial records	Retain return copies permanently if practicable; supporting records at least seven years as NSF policy, longer if required
Bank transactions, reimbursements, grants, contracts and donor restrictions	Normally seven years after the relevant period/termination, with restrictions and legal-hold exceptions
Routine program participation/attendance and evaluation	Term and a risk-based period established by the Board and counsel; minimize especially sensitive information
Child-protection, incident, complaint, insurance, disputed or litigation records	Legal-hold or separately approved, counsel-reviewed category schedule; never routine deletion during an active hold
Media consent and source media	Retain evidence of authorization while media is used, then follow a documented disposition/preservation schedule
Website versions, published communications, public reports	Archive final published versions and consequential edits; preserve relevant snapshots for disputes

5. Legal hold and current disputes

Once NSF reasonably anticipates litigation, receives a preservation demand, becomes aware of an agency inquiry, or otherwise identifies a matter requiring preservation, the Secretary or counsel shall issue a legal hold to relevant custodians. The hold suspends routine deletion of covered records across personal and organizational systems.

Hold notices should identify relevant subjects, dates, systems, devices, custodians, and reporting contacts. The hold remains until an authorized legal reviewer releases it in writing. Deletion, overwriting, backdating, selective editing, or concealment of covered records is prohibited.

Because NSF has reported active litigation and related complaints, preservation measures should be coordinated with counsel immediately and should not await adoption of this prospective Policy.

6. Requests for records: distinct legal routes

Public website access is not the same as statutory inspection. NSF shall distinguish (a) director/governing-person requests under Texas BOC §3.152, (b) qualifying corporate-member requests under §22.351 and governing documents, (c) public tax-document disclosure required by federal law and applicable Texas law, and (d) discovery, subpoenas, court orders, regulatory inquiries, or other legal production.

A request should be logged with date, requester, asserted capacity, purpose if applicable, requested categories, response owner, deadlines, costs, and actual disposition. The current legal status of the requester and relevant privilege or privacy issues must be reviewed; the Foundation shall not deny lawful access merely because the person has complained or filed litigation.

A director or member's legally recognized rights shall not be reduced by a policy label such as "internal" or "confidential." Conversely, general public access does not automatically extend to student evaluations, bank credentials, privileged advice, or all internal correspondence.

7. Public tax records

NSF shall make IRS exemption application materials, determination records, and applicable annual returns available to the extent required by IRC §6104 and related rules. The Foundation shall use the actual filing type and tax year. A Form 990-N e-Postcard shall not be presented as a full Form 990 return.

Public posting is one way to increase transparency but does not by itself answer every inspection/copy request. Before disclosure, review legally permitted exclusions and redactions, including rules concerning donor names in public copies.

8. Student and volunteer privacy

Completed applications, evaluations, accommodations, emergency data, screening results, incident files, and signed media consents shall not be uploaded to public GitHub Pages or accessible website repositories.

Collect and retain the minimum information reasonably needed for the applicable purpose, restrict access, and use secure transfer methods. Information supplied under an intake or agreement should not be repurposed for publicity or unrelated fundraising without an appropriate basis and any required consent.

9. Corrections, disposal, and periodic audit

A verified correction shall be attributable and preserve the original record where integrity or preservation requires. Destroy eligible paper or electronic records securely and in a manner appropriate to sensitivity. Record routine destruction of consequential categories, including approval and date.

The Secretary and Treasurer shall periodically confirm access to minutes, corporate files, accounting records, archives, account inventories, and outstanding legal holds. The Board should review this Policy and the detailed schedule at least annually.

10. Prospective effect

This Policy establishes future handling procedures and does not retroactively authorize destruction, decide ownership of a disputed document, validate a historical vote, or waive inspection, regulatory, or litigation rights.

Source and implementation notes (non-operative)

The following references informed the draft. They do not establish that this policy has been adopted, that every clause is legally mandatory, or that existing governance questions are resolved. Confirm against the documents and law controlling when NSF adopts the policy.

- Texas BOC §§3.151–3.153: https://tcss.legis.texas.gov/resources/BO/htm/BO.3.htm
- Texas BOC §§22.351–22.355: https://tcss.legis.texas.gov/resources/BO/htm/BO.22.htm
- IRS exempt organization public disclosure: https://www.irs.gov/charities-non-profits/public-disclosure-and-availability-of-exempt-organizations-returns-and-applications-documents-subject-to-public-disclosure
- QCRA Document Retention Policy (litigation exception): https://www.queencityrobotics.org/documentretention
- All fixed retention periods are proposed and must be checked against records actually held, applicable law, grants, insurance, and active litigation.